

BC701416 BC701416

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-31

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

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Case Number: BC701416 Hearing Date: July 31, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

YUN-SOOK

PARK,

Plaintiff,

vs.

JIMMY LEE, JEAN KIM, SIMON YANG, LOS ANGELES KOREAN

FESTIVAL FOUNDATION, SISA US MIDEA HOLDINGS, INC., and Does 1-100,

Defendants.

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CASE

NO.: BC701416

[TENTATIVE] ORDER RE: PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS,
SET ONE

Dept. 733

8:30 a.m.

July 31, 2026

I.

INTRODUCTION

On April 10, 2018,

Plaintiff Yun-Sook Park ("Plaintiff") filed a complaint against Defendants
Jimmy Lee ("Lee"), Jean Kim ("Kim"), Simon Yang ("Yang") Los Angeles Korean
Festival Foundation ("the Foundation") and SISA US Midea Holdings, Inc. ("SISA")
("Defendants"), alleging causes of action for (1) Defamation and (2) Breach of
Contract / Money Due and Owing to Plaintiff.

On October 13,

2023, the Court entered judgment in favor of Plaintiff and against Defendants
Lee, Yang, and SISA after a bench trial. The Court awarded \$25,000.00 in
damages and \$25,000.00 in punitive damages. Lee appealed.

On May 12, 2025,
the Court of Appeals affirmed the judgment.

On January 29,
2026, the Court ordered Lee to provide verified responses without objections to
Plaintiff's Requests for Production, set one ("RFPDs") within thirty (30) days.

On March 11, 2026,
Plaintiff filed the instant motion to compel further responses to the RFPDs
with a request for sanctions.

No opposition was
filed.

II. LEGAL STANDARD

Code of Civil Procedure section 2031.220
states: "A statement that the
party to whom a
demand for
inspection, copying, testing, or sampling has been directed will comply
with the particular demand shall state that the production, inspection, copying,
testing, or sampling, and related activity demanded, will
be allowed
either in whole or in part, and that all documents or things in the demanded category
that are in the possession, custody, or control of that party and to which no objection
is being made will be included in the production."

Code of Civil Procedure section 2031.320(a) states: "If a party filing a
response to a demand for inspection, copying, testing, or sampling under Sections
2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to
permit the inspection, copying, testing, or sampling in accordance with
that party's statement of compliance, the demanding party may move for an order compelling
compliance."

The demanding
party may move for an order compelling further responses to the demand if the
demanding party deems that (1) a statement of compliance with the demand is
incomplete, (2) a representation of inability to comply is inadequate,

incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).)

Motions to

compel further responses to Requests for Production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”]; *Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448 [the burden to show good cause for production “is met simply by a factspecific showing of relevance.”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland*, supra, 95 Cal.App.4th at 98.)

Code

Complaint Response

A code-compliant response to a request for production consists of any of the following: (1) a statement that the party will comply, (2) a representation that the party lacks the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210.) A statement that the party will comply must state that the requests for production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Id. § 2031.220.) “If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Id. § 2031.240(a).) If an objection is made, the responding party must “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the

demand to which an objection is being made.”

(Id. § 2031.240(b)(1).)

III.

DISCUSSION

Plaintiff moves to

compel Lee to provide further verified responses without objections to Plaintiff's RFPDs.

“A judgment creditor may conduct discovery directly against the judgment debtor by means of a judgment debtor examination ([Code of Civ. Proc.] § 708.110), written interrogatories (§ 708.020), and requests for production of documents (§ 708.030).” (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 751-752; accord, Li v. Yan (2016) 247 Cal.App.4th 56, 65 [“a judgment creditor may obtain documents from a judgment debtor either by subpoena duces tecum or by a discovery request for production”].)

Code of Civil

Procedure section 708.030, subdivision (a), allows a judgment creditor to obtain information about a third party, provided the document “is in the possession, custody, or control” of the judgment debtor and “the demand requests information to aid in enforcement of the money judgment.” (See SCC Acquisitions, Inc., supra, 243 Cal.App.4th at pp. 752-753.)

“ ‘A judgment debtor examination is intended to allow the judgment creditor a wide scope of inquiry concerning property and business affairs of the judgment debtor.’ ” (Lee v. Swansboro Country Property Owners Assn. (2007) 151 Cal.App.4th 575, 581; United States v. Feldman (C.D. Cal. 2004) 324 F. Supp. 2d 1112, 1116 (citations omitted) [under California law, judgment debtor proceedings “permit the judgment creditor to examine the judgment debtor, or third persons who have property of or are indebted to the judgment debtor, in order to discover property and apply it toward the satisfaction of the money judgment.”].) A debtor examination is intended “to allow the judgment creditor a wide scope of inquiry concerning property and business affairs of the judgment debtor, and to leave no stone unturned in the search for assets which might be used to satisfy the judgment.” (Alcalde v. NAC Real Estate Investments & Assignments, Inc. (C.D. Cal. 2008) 580 F. Supp. 2d 969, 970 (internal citations and quotations omitted).)

Here, Plaintiff's

counsel provides that the RFPDs were served on August 14, 2025. (Biggins Decl., ¶ 3.) On January 29, 2026, the Court ordered Lee to provide verified responses without objections to the RFPDs within thirty (30) days of the order. (Id. ¶ 5.) On February 26, 2026, Plaintiff's counsel received Lee's responses to the RFPDs, which consisted of a response to RFPD No. 1 identifying bank accounts at Woori America Bank and PCB Bank, but containing no documents, no account statements, and no verification and an objection to each of Requests Nos. 2 through 21, asserting that Plaintiff has already produced documents and bears the burden of proof. (Id. ¶ 6, Ex. A.) These responses were not verified. (Ibid.)

The Court first

notes that the motion is timely.

A motion to compel

a further response to a request for production must be noticed within 45 days of the service of the verified response, or any verified supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. Otherwise, the propounding party waives any right to compel further response to the demand. (See Code Civ. Proc., § 2031.310(c).) "[T]he time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers to interrogatories." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) The 45-day deadline "is 'jurisdictional' in the sense that it renders the court without authority to rule on motions to compel other than to deny them." (Ibid.)

Given that

Plaintiff's counsel received Lee's responses on February 26, 2026 and Plaintiff filed the instant motion on March 11, 2026, the motion is timely.

However, Plaintiff

failed to file a separate statement. According to California Rules of Court, rule 3.1350(c)(2), a motion to compel further responses must always be accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (Cal. Rules of Court, rule 3.1345(a).) While the Court is "well within its discretion" to deny the motion on this ground alone, the Court will nonetheless

consider Plaintiff's motion. (*Mills v. U.S. Bank* (2008) 166 Cal. App. 4th 871, 893; *Neary v. Regents of University of California* (1986) 185 Cal.App.3d 1136, 1145 [describing trial court's denial of motions to compel discovery because of a nonconforming separate statement]; *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409 fn.14 ["Although the court rule requiring a separate statement on a motion to compel further responses (Cal. Rules of Court, rule 3.1020) would permit the trial court to continue or deny a motion to compel when no separate statement is provided, it does not limit a trial court's discretion to compel further answers notwithstanding the absence of a separate statement."].)

The Court finds compelling further responses is appropriate. Lee's responses are facially deficient. For RFPDs No. 1, Lee identified bank accounts at Woori America Bank and PCB Bank but produced no statements, records, or documents. (*Biggins Decl., Ex. A.*) For Nos. 2 through 21, Lee solely produced the meritless objection that "[t]he plaintiffs have the burden of proving their case by a preponderance of the evidence." (*Ibid.*)

Thus, Plaintiff's motion is granted.

Sanctions

Plaintiff requests sanctions against Lee in the amount of \$5,120.00.

Under section 2023.030(a), "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030(a).)

The Court finds sanctions appropriate,
considering Lee's evasive and deficient responses.

Plaintiff's counsel declares that his
hourly rate is \$850.00, which the Court finds excessive and not sufficiently
established by the accompanying declaration. (Biggins Decl., ¶ 8.) The
Court reduces counsel's rate to \$450.00. Counsel also declares that he incurred
\$5,000.00 in fees preparing the instant motion, which the Court also finds
excessive. (Ibid.) The Court reduces the time spent on the instant
motion to 1.5 hour, which includes time spent attending and preparing for the
hearing. This equals \$675.00, plus the \$60.00 filing fee, which totals \$735.00.

IV.

CONCLUSION

Plaintiff's motion to compel Lee's further responses
to Plaintiff's RFPDs is GRANTED. Lee shall provide verified responses without objections to the above discovery within thirty
(30) days of this order.

Plaintiff's request for sanctions is GRANTED
in the amount \$735.00 against
Lee. Sanctions are payable within thirty (30) days.

Dated this 31st
day of July 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court